



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: Agreement for public safety fees for Saddle Ridge 16th Filing final plat.
Date: May 24, 2021

Background:

The item for consideration is an agreement for public safety fees associated with the Saddle Ridge 16th Filing final plat. The final plat is a separate item on this agenda.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral: May 24, 2021
- Public Service Committee: June 8, 2021
- Final consideration: June 14, 2021

On May 3, 2021, the Planning Commission approved a preliminary plat and recommended approval of an expedited plat subject to specific conditions (as noted on the corresponding plat item also on this agenda). Condition 1.c. was as follows:

“Prior to approval of the final plat, the applicant shall: Enter into a development agreement for public safety fees. Public safety fees shall be based on a January 2021 fee of \$756 per unit and shall be adjusted for inflation utilizing the construction cost index for twenty (20) cities, as issued by the current Engineering News Record to the date of final plat filing, and this condition shall be subject to modification by the Governing Body at the time of their consideration.”

This agreement satisfies condition 1.c. For the purpose of establishing the fee staff utilized a fee of \$756 per unit that was deemed acceptable by the Governing Body in their recent approval of the Whitney Range 3rd Filing Development agreement. This fee was adjusted for inflation utilizing the construction cost index for twenty (20) cities, as issued by the current Engineering News Record to the date of final plat filing. The inflation-adjusted fee totals \$793.89 per dwelling unit. The total fees for this development will be \$20,641.14 which will be placed in the Development Impact Fund earmarked for the purpose of enhancing the City's fire rescue infrastructure.

Staff Recommendation:

Staff recommends the Governing Body approve the agreement as it satisfies preliminary plat condition 1.c.

Attachments:

1. Agreement for Public Safety Fees

AGREEMENT FOR PUBLIC SAFETY FEES

THIS DEVELOPMENT AGREEMENT ("Agreement"), is made and entered into this _____ day of _____, 2021, by and between the City of Cheyenne, Cheyenne, Wyoming, a municipal corporation, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as the "City," and WJE, LLC, a Wyoming Limited Liability Corporation, 506 Shoshone Street, Cheyenne, WY 82001, hereinafter referred to as the "Developer".

RECITALS

WHEREAS, Developer is developing a subdivision to be known as Saddle Ridge 16th Filing situated in the County of Laramie, State of Wyoming (herein referred to as "Development"), as shown in Exhibit A which is attached hereto and incorporated herein, an legally described as follows, to wit:

A PARCEL OF LAND, LOCATED IN THE EAST HALF OF SECTION 25, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT ON THE NORTH RIGHT OF WAY OF PERSHING BOULEVARD FROM WHICH THE E $\frac{1}{4}$ CORNER OF SECTION 25, T.14N., R.66W., OF THE 6TH P.M., BEARS N35°18'49"E, A DISTANCE OF 678.48 FEET; THENCE S65°53'48"W, A DISTANCE OF 390.00 FEET TO THE EASTERLY LINE OF SADDLE RIDGE 13TH FILING; THENCE ALONG SAID EASTERLY LINE, N24°04'33"W, A DISTANCE OF 434.02 FEET TO A POINT; THENCE 31.42 FEET ALONG SAID EASTERLY LINE ON A CURVE TO THE RIGHT, THROUGH AN ANGLE OF 90°00'00", HAVING A RADIUS OF 20.00 FEET, AND WHOSE LONG CHORD BEARS N20°55'27", A DISTANCE OF 28.28 FEET TO A POINT; THENCE CONTINUING ALONG THE EASTERLY LINE OF SADDLE RIDGE 13TH FILING, N10°37'24"W, A DISTANCE OF 61.69 FEET TO A POINT; THENCE N65°55'27"E, A DISTANCE OF 361.65 FEET TO A POINT; THENCE S24°04'33"E, A DISTANCE OF 332.00 FEET TO A POINT; THENCE S65°55'27"W, A DISTANCE OF 6.00 FEET TO A POINT; THENCE S24°04'33"E, A DISTANCE OF 181.84 FEET TO THE POINT OF BEGINNING.

SAID PARCEL CONTAINS 4.61 ACRES, MORE OR LESS.

WHEREAS, the Development will result in impacts to the City's infrastructure system;

WHEREAS, the Development proposes construction of a total of twenty six (26) residential units;

WHEREAS, the Development impacts the City's emergency response ability;

WHEREAS, the Development increases the service area for Cheyenne Fire Rescue and necessitates system improvements to serve the area;

WHEREAS, a condition of preliminary plat approval was to enter into a development agreement for public safety fees that shall be based on a January 2021 fee of \$756 per unit and shall be adjusted for inflation utilizing the construction cost index for twenty (20) cities, as issued by the current Engineering News Record to the date of final plat filing;

WHEREAS, public safety fees shall be collected and deposited into the Development Impact Fund and segregated for the purpose of public safety and infrastructure;

WHEREAS, Developer has agreed to a public safety fee of seven hundred ninety-three dollars and eighty-nine cents (\$793.89) per dwelling unit incorporates inflation and is deemed appropriate for the Development.

NOW, THEREFORE, in consideration of the promises of the parties hereto and other good and valuable consideration, the receipt and adequacy of which are hereby acknowledged, the Parties agree as follows:

1. Recitals Incorporated. The foregoing recitals are incorporated herein by reference into this Agreement as though set forth at length.
2. The Parties agree to the following public safety fees regarding public safety improvements:
 - A. Public safety fees total forty-eight thousand four hundred and twenty-seven dollars and seven cents (\$20,641.05).
 - B. Public safety fees shall be collected by the City at the time of initial building permit application within Saddle Ridge 16th Filing final plat within the Development. Public safety fees shall be based on subdivision plat assumptions regarding number of units as provided in subsection A above.
 - C. Public safety fees shall be deposited into the Development Impact Fund and segregated for the purpose of public safety and infrastructure.
 - D. The Developer may, at any time, request a report of the account activity in the Development Impact Fund and the City Treasurer shall deliver said report within thirty (30) days.
 - E. If the City implements a City-wide public safety fee requirement for residential development with fees due at the time of building permit application, lots within the Development shall be exempt from fee requirements. Any funds paid into the Development Impact Fund in excess of the adopted fee schedule shall be refunded to the Developer within sixty (60) days of adoption of said public safety fee requirement. Shall the City enter into a subsequent development agreement requiring a lessor per unit fee, the difference of funds paid into the Development Impact Fund in excess of the subsequent development agreement per unit fee shall be refunded to the Developer within sixty (60) days of adoption of said public safety fee requirement. If the City does not implement a City-wide public

safety fee requirement for residential development within twenty-four (24) months of this Agreement, public safety fees paid shall be refunded to the Developer upon request by the Developer. Any request for a refund in whole or in part shall be made by the Developer and shall occur within sixty (60) days of an event triggering refund.

3. **Binding Effect.** This Agreement shall run with the Property for a period of fifteen (15) years and shall commence after the final approval of all phases of the Development by the City. This Agreement shall also be binding upon and inure to the benefit of the parties hereto, their respective personal representatives, heirs, successors, grantees and assigns. Assignment of interest within the meaning of this paragraph shall specifically include, but not be limited to, a conveyance or assignment of any portion of the Developer's legal or equitable interest in the Property, as well as any assignment of the Developer's rights to develop the Property under the terms and conditions of this Agreement. This Agreement shall be recorded against all lots within future phases of the Development.
4. **Relationship of Parties.** Nothing contained in this Agreement shall be deemed or construed, either by the parties hereto or by any third party, to create the relationship of principal and agent or create any partnership, joint venture or other association between the City and the Developer.
5. **Counterparts.** This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which, together, shall constitute one and the same instrument.
6. **Applicable Law.** This Agreement shall be governed by and construed and enforced in accordance with the laws of the State of Wyoming.
7. **Governmental Immunity.** The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.
8. **Entire Agreement.** This Agreement (including the Exhibits attached hereto) contains the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous representations, statements, understandings, negotiations and agreements, oral or written, between the parties, if any, with respect thereto.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement on the day and year first written above.

CITY:

City of Cheyenne, a Municipal Corporation

By: Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

DEVELOPER:

WJE LLC, a Limited Liability Corporation

By: John M. Edwards, Manager

[Acknowledgments on following page]

ACKNOWLEDGMENTS

State of Wyoming)
) ss.
County of Laramie)

Subscribed and sworn to (or affirmed) before me this _____ day of _____, 2021, by
Patrick Collins, Mayor of the City of Cheyenne.

Witness my hand and official seal.

Notary Public

My commission expires: _____

State of Wyoming)
) ss.
County of Laramie)

Subscribed and sworn to (or affirmed) before me this _____ day of _____, 2021, by
John M. Edward as President for WJE, LLC.

Witness my hand and official seal.

Notary Public

My commission expires: _____